

PLJ 2019 Lahore (Note) 44

Present: JAWAD HASSAN, J.

MUHAMMAD MUNIR--Petitioner

versus

SECRETARY FOREST WILD LIFE AND FISHERIES, DEPARTMENT, PUNJAB, LAHORE and 3 others--
Respondents

W.P. No. 161203 of 2018, decided on 9.2.2018.

Constitution of Pakistan, 1973--

----Art. 199--Constitutional Petition--Transfer Order--Violation of transfer policy--Terms and conditions of service--Jurisdiction--Maintainability--Direction to--Certified copy of this petition alongwith all annexures be sent to Respondent No. 1, who shall treat same as representation of Petitioner and decide it after providing proper hearing to all concerned including Petitioner and will pass a speaking order in light of transfer policy--Petition was disposed of [Para 6] A 2017 SCMR 798, *ref.*

Sardar Muhammad Ashraf Khan Sargana, Advocate for Petitioner.

Mr. Ashfaq Ahmed Kharal, AAG for Respondents.

Date of hearing: 9.2.2018

ORDER

Through this petition, the Petitioner has sought setting-aside of impugned transfer order dated 01.02.2018 passed by the Respondent No. 2.

2. Learned counsel for the Petitioner submits that the Respondents have passed impugned transfer/posting orders in violation of their own transfer policy and the judgment of the Hon'ble Supreme Court of Pakistan reported as "*Fida Hussain Shah and others v. Government of Sindh and others*" (2017 SCMR 798) as such same is liable to be set-aside.

3. Learned Law Officer objected qua maintainability of the present petition and submits that the transfer/posting relates to terms and conditions of service of a civil servant, therefore, jurisdiction of this Court cannot be invoked in view of bar contained in Article 212 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution").

4. At the outset, learned counsel for the Petitioner submits that the Petitioner will be satisfied if this petition be converted into Representation on his behalf and be remitted to the Respondent No. 1 alongwith all the annexures with the direction to decide the same expeditiously in accordance with law.

5. Learned law officer has no objection if such direction be issued to the Respondent No. 1

6. In this view of the matter, let a certified copy of this petition alongwith all the annexures be sent to the Respondent No. 1, who shall treat the same as representation of the Petitioner and decide it after providing proper hearing to all the concerned including the Petitioner and will pass a speaking order in light of the transfer policy and the law laid down by the Hon'ble Supreme Court in "*Fida Hussain Shah and others v. Government of Sindh and others*" (2017 SCMR 798) expeditiously within a period of three (03) weeks from the receipt of certified copy of this order.

7. **Disposed of.**

(M.M.R.) Petition disposed of